discovery and motion practice regarding discovery disputes. Defendants stated their preference for a jury trial on their case management conference statement filed on June 25, 2025. On that filing defendants left the box blank for indicating it was "willing to participate" in arbitration, and represented that the only motion it intended to file was a "dispositive motion." (Plaintiff's Exh. 11.) At the conference, Defendants agreed to the March 22, 2027 trial date. (Plaintiff's Exh. 13.)

Defendants actively engaged in discovery, produced thousands of documents, obtained discovery responses and document production from plaintiff, met and conferred with plaintiff's counsel about discovery disputes, attended two Pre-Trial Discovery Conferences, and entered into two Stipulations and Order to be bound by this court's proceedings. (Plaintiff's Exhs. 14-16, 18-21, 23, 25.) And even after the purported discovery of the arbitration agreement in November 2025, defendants waited another four months to file a motion to compel arbitration. The court finds that defendants, through their litigation conduct in this judicial forum, waived the right to compel arbitration.

It is unnecessary to address plaintiff's other arguments against compelling arbitration. However, the court notes that all evidentiary objections are overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: SMC on June 17, 2026 .
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Baldomero Zarate v. Larry Thull***
Superior Court Case No. 22CECG01089

Hearing Date: June 18, 2026 (Dept. 403)

Motion: By Defendant Larry William Thull to Bifurcate the Trial between Liability and Punitive Damages (Civ. Code § 3295, subd. (d))

Tentative Ruling:

The Court grants defendant Larry William Thull's unopposed motion to bifurcate the issues of liability and punitive damages and to preclude evidence and/or reference to punitive damages and Fruit Fillings Holdings, Inc.'s financial condition during the liability phase of the trial. (Civ. Code, § 3295, subd. (d).)

Explanation:

Defendant, Larry William Thull ("Thull" or "defendant") moves this Court for an Order bifurcating the issues of liability and punitive damages and to preclude evidence and/or reference to punitive damages and Defendant's financial condition during the liability phase of the trial, pursuant Civil Code section 3295, subdivision (d).

Civil Code section 3295, subdivision (d) provides in relevant part: "The court shall, on application of any defendant, preclude the admission of evidence of that defendant's profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294." Our Supreme Court has explained, "As an evidentiary restriction, section 3295(d) requires a court, upon application of any defendant, to bifurcate a trial so that the trier of fact is not presented with evidence of the defendant's wealth and profits until after the issues of liability, compensatory damages, and malice, oppression, or fraud have been resolved against the defendant. Bifurcation minimizes potential prejudice by preventing jurors from learning of a defendant's 'deep pockets' before they determine these threshold issues." (*Torres v. Automobile Club of So. California* (1997) 15 Cal.4th 771, 777-778.)

"A request under section 3295, subdivision (d) is essentially a motion *in limine*, and ordinarily should be made before trial." (*Las Palmas Associates v. Las Palmas Center Associates* (1991) 235 Cal.App.3d 1220, 1241.)

Here, Thull argues that his financial condition has nothing to do with whether it is liable to plaintiff for his alleged damages.

In light of the fact that no opposition has been submitted, and as defendant's financial condition has no apparent relevance to the determination of liability, the court finds that the most efficient approach would be to try the issue of punitive damages after there have been findings of compensatory and punitive liability.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling
Issued By: SMC on June 17, 2026 .
(Judge's initials) (Date)